

IN THE UNITED STATES DISTRICT COURT
IN THE WESTERN DISTRICT OF NORTH CAROLINA
ASHEVILLE DIVISION
CIVIL ACTION NO. 1:19-cv-207

SAYMON FARIA,

Plaintiff,

vs.

ABIGAIL NICOLE WRIGHT,
individually, and BROAD RIVER
LOGISTICS, LLC,

Defendants.

COMPLAINT FOR A CIVIL CASE
ALLEGING NEGLIGENCE
JURISDICTIONAL STATEMENT

1. This Court has jurisdiction of the subject matter of the within action pursuant to 28 U.S.C. § 1332; Diversity of Citizenship, as the claim is between citizens from different states and the amount in controversy exceeds \$75,000.00 exclusive of interest and costs.

PARTIES

2. Plaintiff, SAYMON FARIA, is a citizen of the State of Florida, County of Miami-Dade, and resides at 36 Northeast 1st Street, Suite 747, Miami, Florida, 33132.

3. Defendant, ABIGAIL NICOLE WRIGHT, is a citizen of the State of North Carolina, County of Yancey, and resides at 366 Powell Road, Burnsville, North Carolina, 28714.

4. Defendant, BROAD RIVER LOGISTICS, LLC, is a limited liability company licensed and doing business in North Carolina, with a principal office located in Rutherford County at 324 Tiney Road, Ellenboro, North Carolina, 28040.

5. Upon information and belief, the members of BROAD RIVER LOGISTICS, LLC, are Richard Ray Hughes, Sr., Linda Sue Hughes, and Richard Ray Hughes, Jr., are residents of and are domiciled in Forest City, North Carolina.

6. On or about September 11, 2017, Plaintiff, SAYMON FARIA, was operating a motor vehicle on NC 226 driving from SR 1120 towards SR 1119 in Spruce Pine, North Carolina.

7. At that time and place, Defendant, ABIGAIL NICOLE WRIGHT, negligently operated a motor vehicle by failing to reduce speed and violently striking the rear of Plaintiff's motor vehicle.

8. The vehicle driven by Defendant, ABIGAIL NICOLE WRIGHT, was registered to and owned by Defendant, BROAD RIVER LOGISTICS, LLC.

9. Plaintiff could not have prevented the Defendant's vehicle from making an impact with his vehicle.

COUNT I - ABIGAIL NICOLE WRIGHT
(Negligence)

10. Plaintiff incorporates by reference Paragraphs 1-9 as though fully set forth herein.

11. At the aforementioned time and place, Defendant, ABIGAIL NICOLE WRIGHT, owed a duty to the general public and other motorists, including Plaintiff, to operate and/or maintain her vehicle in a reasonable and safe manner and to follow all applicable traffic laws, regulations, codes, and the standard of care for motor vehicle operators.

12. Defendant, ABIGAIL NICOLE WRIGHT, negligently breached her duty of care to the Plaintiff in one or all of the following manners:

- a. Failing to reduce speed to avoid colliding with Plaintiff's vehicle, in violation of N.C.G.S. § 20-141(m), which violation constitutes negligence *per se*;
- b. Failing to use reasonable care under the circumstances, in violation of N.C.G.S. § 20-141(a), which violation constitutes negligence *per se*;
- c. Driving in a reckless manner in violation of N.C.G.S. § 20-140, which violation constitutes negligence *per se*;
- d. Driving at a rate of speed that was excessive for the circumstances;
- e. Failing to keep the vehicle she was operating under proper control;
- f. Failing to keep a proper lookout;
- g. Failing to follow the accepted standard of care for motor vehicle operators; and
- h. Violating North Carolina traffic laws and codes for operation of a motor vehicle.

13. As the direct and proximate result of Defendant, ABIGAIL NICOLE WRIGHT's, breach of duty, Plaintiff, SAYMON FARIA, sustained severe and permanent injuries and damages, endured and continues to endure pain and suffering, incurred substantial medical expenses and will incur additional medical expenses in the future, has suffered loss of earnings and loss of earning capacity and, has suffered other consequential damages and other damages all in an amount in excess of \$75,000.00.

14. Plaintiff reserves his right to amend this pleading to add other allegations of negligence, gross negligence, willful or wanton conduct, and/or recklessness, as they may be identified during discovery and proven at trial.

COUNT II- BROAD RIVER LOGISTICS, LLC
(Respondeat Superior)

15. Plaintiff incorporates by reference Paragraphs 1-14 as though fully set forth herein.

16. Defendant, BROAD RIVER LOGISTICS, LLC, is the registered owner of the vehicle that Defendant, ABIGAIL NICOLE WRIGHT, was driving when she struck Plaintiff, SAYMON FARIA.

17. Upon information and belief, Defendant, ABIGAIL NICOLE WRIGHT, was an employee or agent for Defendant, BROAD RIVER LOGISTICS, LLC, at the time of the subject wreck.

18. Upon information and belief, Defendant, ABIGAIL NICOLE WRIGHT, was acting within the course and scope of her employment or agency for Defendant, BROAD RIVER LOGISTICS, LLC, at the time of the subject wreck.

19. Defendant, BROAD RIVER LOGISTICS, LLC, is vicariously responsible for the negligent acts and omissions of ABIGAIL NICOLE WRIGHT as its employee and/or agent under the doctrine of Respondeat Superior.

20. As a direct and proximate cause of the negligent acts and omissions of ABIGAIL NICOLE WRIGHT and BROAD RIVER LOGISTICS, LLC, Plaintiff, SAYMON FARIA, sustained severe and permanent injuries and damages, endured and continues to endure pain and suffering, incurred substantial medical expenses and will incur additional medical expenses in the future, has suffered loss of earnings and loss of earning capacity and, has suffered other consequential damages to be proven at trial.

WHEREFORE, Plaintiff respectfully prays that he have and recover of the Defendants as follows:

1. That Plaintiff have and recover of Defendants a sum in excess of Seventy-Five Thousand Dollars (\$75,000.00), for compensatory damages, plus interest as allowed by law from the date of filing, including pre- and post-judgment interest.
2. That a jury trial be had on all issues of fact;
3. That the costs of this action be taxed against Defendants; and
4. For such other, further and different relief as the Court deems just, reasonable, and proper.

This the 27th day of June, 2019.

ROBERTS & STEVENS, P.A.

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